MILITARY ENGINEER SERVICES

NAME OF WORK: ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR

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Drawings : sheets

Signature of Contractor
Date:

AAD (Contract)
for Accepting Officer

Tel : 0832-253 1035

HQ, Chief Engineer (Coast Guard)
Military Engineer Services
Coast Guard Air Enclave
Dabolim, Goa– 403 801

81012/ 03 /E8

10 Jun 2019

M/s_____

_____

NAME OF WORK : ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR

Dear Sir (s),

1. Tender documents in respect of above work are uploaded on the site www.eprocuremes.gov.in/https://defproc.gov.in. The tender is on single stage two cover / two stage two cover / three cover e-tendering system. The contents of Cover I & Cover II are specified in NOTICE OF TENDER.

2. Bids will be received online by CE (COAST GUARD) GOA (ACCEPTING OFFICER) upto the date and time mentioned in the NOTICE INVITING TENDER (NIT). No tender / bid will be received in physical form and any tender / bid received in such manner will be treated as non bonafide tender / bid.

3. Bid will be opened on due date and time fixed for opening in the presence of tenderers / bidders or their authorized representatives, who have uploaded their quotation bid and who wish to be present at the time of opening the bids.

4. Your attention is also drawn to instruction on filing and submission of tender attached herewith. You may forward your points on tender documents and / or depute your technical representative for discussion on tender / drawings and to clarify doubts, if any, on or before **30 Jun 2019.** You are requested not to write piece meal points and forward your points duly consolidated before due date viz. **30 Jun 2019.**

5. Unenlisted contractors are required to submit the scanned copies (in pdf file) of documents required as per eligibility criteria mentioned in instructions for filling the tender documents and Appendix 'A' to NIT alongwith EARNEST MONEY DEPOSIT (EMD) and tender fee on e-procurement portal and submit the physical documents in the office of HQ Chief Engineer (Coast Guard) Goa within time limit specified in NIT. Inadequacy / deficiency of documents shall make the bid liable for rejection resulting in disqualification for opening of finance bid.

6. (a) Contractor having not executed standing security bond and standing security deposit in any MES formation shall upload scanned copy of EARNEST MONEY DEPOSIT (EMD) mentioned in Notice of Tender and shall ensure receipt of hard copy of EMD in the office of tender issuing authority before date & time fixed for this purpose. In case of failure to abide by any of these two requirements, the finance bid will not be opened.

(b) Contractor having not executed standing security bond and standing security deposit in any MES formation would be required to deposit individual security deposit on acceptance of tender which will be calculated with reference to the tendered cost as per scales laid down by MES for calculation of "EARNEST MONEY" enhanced by 25% subject to maximum of Rs 1875000/- (Rupees Eighteen Lakhs Seventy Five Thousand only).

7. Enlisted contractors of MES shall submit the scanned copies (pdf file) of enlistment letter, tender fee and such other documents as mentioned in Appx 'A' to **NIT** on e-procurement portal and submit physical documents in the office of HQ Chief Engineer (Coast Guard) Goa before date & time fixed for this purpose.

8. The contractor must ensure that the tender / bid on the proper form is uploaded in time as the Accepting Officer will take no cognizance of any quotations/ offer received in any other electronic or physical form like email/fax/by hand/ through post from tender / bidder even if they are received in time.

Contd…-

9. In view of delays due to system failure or other communication related failures, it is suggested that the tender /bid be uploaded, if necessary sufficiently in advance of the last due date and time fixed.

10. General Conditions of Contracts (IAFW-2249) (1989 Print) and errata and amendments thereto, Schedule of minimum fair wages and MES SSR (Part-I and Part-II) are not enclosed with these documents. These are available for perusal in the office of GE concerned and this office.

11. ANY TENDER, WHICH PROPOSE ALTERATIONS TO ANY OF THE CONDITIONS, SPECIFICATIONS LAID DOWN IN THE TENDER DOCUEMTNS OR ANY NEW CONDITION, WHATSOEVER, IS LIABLE TO BE REJECTED.

12. (a) Contractor having not executed standing security bond and standing security deposit in any MES formation shall upload scanned copy of EARNEST MONEY DEPOSIT (EMD) mentioned in Notice of Tender and shall ensure receipt of hard copy of EMD in the office of tender issuing authority before date & time fixed for this purpose. In case of failure to abide by any of these two requirements, the finance bid will not be opened.

(b) Contractor having not executed standing security bond and standing security deposit in any MES formation would be required to deposit individual security deposit on acceptance of tender which will be calculated with reference to the tender cost as per scales laid down by MES for calculation of “EARNEST MONEY” enhanced by 25% subject to maximum of Rs 1875000/- (Rupees Eighteen Lakhs Seventy Five Thousands only).

13 **CLARIFICATION ON PROVIDENT FUND CODE NUMBER**:

(a) Contractors who have not yet been allotted Permanent Provident Fund Code Number shall submit proof indicating their online application and upload their temporary PF code number allotted online. The temporary PF code number so uploaded shall be considered sufficient for the purpose of e-tendering.

(b) The above documents in pdf format shall be uploaded in Cover No 1 of the bid

14. This letter shall form part of the tender documents.

Yours faithfully

AAD (Contracts)
for Accepting Officer

Signature of contractor

MILITARY ENGINEER SERVICES

NOTICE INVITING TENDER (NIT) (IN LIEU OF IAFW-2162 (REVISED 1960)

1. A tender is invited for (see Appendix-'A').

2. The tender shall be based on (see Appendix-'A').

3. The work is estimated to cost (see Appendix-'A'). This estimates however, is not a guarantee and is merely given as a rough guide. If the work costs more or less, the tenderer will have no claim on this account.

4. The work is to be completed within the period as indicated in the aforesaid Appendix-'A' from the date of handing over site which may be about two weeks after the date of acceptance of the tender.

5. Normally the Contractors whose names are on the MES approved list for the area in which the work lies and within whose financial category the estimated amount would fall may tender. But in case of term contracts, Contractors in category 'SS' to 'E' may tender. In case where the tendered amount is in excess of the financial category of the Contractor, the Accepting Officer reserves the right to accept the tender, in which event the tenderer would be required to lodge additional security deposit as notified by the accepting officer in terms of conditions of contract.

5.1 Contractors whose names are on the MES approved list of any MES formation and who have deposited standing security deposit and have executed standing security bond may also tender without depositing earnest money along with the tender and if the Accepting Officer proposes to accept the tender, such tenderer would be required to deposit security deposit as notified by the Accepting Officer before acceptance of tender. In case, however, the Accepting Officer subsequent to deposition of security deposit decides not to accept the tender for any reason whatsoever the amount deposited will be refunded to the Contractor.

5.2 Not more than one tender shall be submitted by one Contractor, or one firm of Contractors.

5.3 Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another will be allowed to tender for the same contract as separate competitors. A breach of this condition will render the tender of both parties liable to rejection.

5.4 Invitation for applications for issue of tender does not constitute any guarantee for issue of tender to the applicant, even to enlisted Contractor of appropriate class. Issue of tender will be decided by the Accepting Officer based on interalia past track record, financial position and experience of similar works executed by the Applicant/Contractor. The Accepting Officer shall consider applications received up to the date of receipt of application/extended date of receipt of applications for issue of tender. The Applicant/Contractor will be informed regarding non-issue of tender without assigning reasons. The applicant/contractor, if he so desires may appeal to the next higher Engineer authority with copy to the Accepting officer. No appeal/representation shall be entertained in respect of applications for issue of tenders as received after the due date of receipt of applications/extended date of receipt of applications. The decision of the next higher Engineer authority shall be final. No Applicant /Contractor shall be entitled for any compensation whatsoever for rejection of his application.

6. The Chief Engineer (Coast Guard) Goa will be the Accepting Officer here-in-after referred to as such for the purpose of this contract.

7. The Technical Bid and Financial bid (Cover-1 and Cover-2) Shall be uploaded by the tenderer/bidder on or before the date & time mentioned in NIT. A scanned copy of DD with enlistment details/documents shall be uploaded as packet 1/cover-1 ('T' bid) of the tender/bid on e-tendering portal. DD is refundable in case T bid is not accepted resulting in non-opening of 'Q' bid. The applicant contractor shall be a cost of bank charges for procuring and encashing the DD and shall not have any claim from Government whatsoever on this account.

7.1 Tender forms and conditions of contracts and other necessary documents shall be available on eprocuremes.in / eprocure.gov.in site for download and shall from part of contract agreement in case tender/bid is accepted.

7.2 The appropriate Standing Security amount for this work shall be as deposited by the Contractors, enlisted in the Command in which the work lies for (see Appendix-'A'). In case of a Contractor who has not executed the Standing Security Bond, the tender shall be accompanied by earnest Money amounting to (see Appendix-'A') in the form of deposit at Call receipt issued in favour of the GE concerned from a Scheduled Bank or in the form of receipted treasury Challan, the amount being credited to the revenue deposit of the Garrison Engineer (see Appendix-'A').

7.3 A Contractor who is not enlisted for the area in which the work lies, but whose name is in the MES approved list of any MES formation and who has deposited standing security and executed standing security bond may tender without depositing earnest money along-with the tender but if the Accepting Officer decides to accept the tender, such tenderer shall lodge security deposit as notified by the Accepting Officer with the Controller of Defence Account concerned in the prescribed form shall deposit within thirty days of the receipt by him of notification of acceptance of the tender the additional amount as mentioned in the aforesaid Appendix 'A' failing which the sum will be recovered from the first RAR payment or from the first final bill in case of term/running contracts, However, in case where any payments is made to the Contractor within thirty days of the receipt by him of notification of acceptance of tender the amount of additional security shall be recovered from such payment.

NOTICE INVITING TENDER (contd…)

7.4 A Contractor who has executed the standing security bond but not for the appropriate class as mentioned above shall deposit within thirty days of the receipt by him of notification of acceptance of the tender the additional amount as mentioned in the aforesaid Para 9.1, failing which the sum will be recovered from the first RAR payment or from the first final bill in case of term/running contracts, However, in case where any payments is made to the Contractor within thirty days of the receipt by him of notification of acceptance of tender the amount of additional security shall be recovered from such payment.

7.5 The GE will return the earnest Money wherever applicable to all unsuccessful tenderers by endorsing authority and deposit receipt for its refund on production by the tenderer a certificate of the Accepting Officer that a bonafide tender (vide condition 16 hereinafter) was received and all documents were returned. The GE will either return the earnest Money to the successful tenderer by endorsing on the deposit receipt for its refund on receipt of an appropriate amount of security deposit or will retain the same on account of part of security deposit if such a transaction is feasible.

7.6 Copies of the drawings and the documents pertaining to the work signed for the purpose of identification by the Accepting officers or his accredited representative, sample of materials and stores to be supplied by the contractor will also be available for the inspection of tenderer/bidder at the office of Accepting Officers and concerned GE/GE(I)/AGE(I) office during working hours.

7.7 Tender issued to Contractors who are not enlisted with MES and not executed the standing security bonds:
(a) The amount of earnest money for the work to be furnished along-with the tender shall be as mentioned in Appendix-'A'.
(b) The amount of individual security deposit for the work in case the tender is accepted shall be the amount calculated with reference to the tendered cost as per the scales laid down by MES for calculation of Earnest money enhanced by 25% (subject to a maximum of Rs.18,75,000/-).

7.8 Tender issued to Contractors who are enlisted and have lodged the standing Security Deposit Bond of lower class: The amount of additional security deposit for the work, in case the tender is accepted shall be the difference between 'Individual Security Deposit' calculated with reference to this TENDERED COST as per the scale laid down by the MES for calculations of Earnest Money enhanced by 25% (subject to a maximum of Rs.18,75,000/-) and the Standing Security Deposit lodged. Copies of the drawings and the documents pertaining to the work signed for the purpose of identification by the Accepting Officer or his accredited representative and sample of materials and stores to be supplied by the Contractor will be opened for the inspection at the concerned GE office (See Appendix-'A') during office working hours.
The tenderers are advised to visit site by making prior appointment with the GE by giving sufficient time. Tenderer shall be deemed to have full knowledge of all relevant document samples, site, etc. whether he has inspected these or not.

8. Tender of any tenderer who proposes any alternation to any of the conditions laid down or who proposes any other condition of any description whatsoever is liable to be rejected.

9. The Uploading of bid implies that he has read this notice and the condition of contract and has made himself aware of the scope and specifications of work to be done and of the conditions and the rates at which stores, tools and plants etc will be issued to him and local conditions and other factors having bearing on the execution of the work.

10. Tenderers must be in possession of a copy of the MES Standard Schedule of Rates (as applicable) and specifications including errata and amendments there to.

11. Invitation for e-tender does not constitute any guarantee for validation of 'T' bid and subsequent opening of finance bid of any applicant/bidder, even of enlisted contractors of appropriate class, merely by virtue of enclosing DD. Accepting Officers reserves the right to reject the 'T' bid and not open the finance bid of any applicant/bidder. 'T' bid validation shall be decided by the Accepting officers based on, inter alia, capability of the firm a per criteria given in Appendix 'A' to this NIT. The applicant contractor/bidder will be informed regarding non validation of his 'T' bid assigning reasons there of through the eprocuremes website. The applicant contractor/bidder if he so desires may appeal to the next higher Engineer Authority namely **HQ Additional Director General (Projects), Military Engineer Services, Indian Coast Guard Air Station Complex, Rudhra Road, St Thomas Mount, Chennai-600 016** with copy to the Accepting officer on email before the scheduled date of opening of finance bid. The decision of the Next Higher Engineer Authority (NHEA) shall be final and binding. However Contractor / bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

12. The Accepting Officer reserve the right to accept a tender submitted by a public undertaking giving a price preference over other tender(s) which may be lower as are admissible under the Govt policy. No claim for any compensation or otherwise shall be admissible from such tenderer/bidder whose tender/bid may be rejected on account of the said policy.

13. The Accepting Officer does not bind himself to accept the lowest or any tender to give any reasons for not doing so.

14. The Notice Inviting Tender (NIT) Including Appendix 'A' shall from part of the contract.

Signature of Contractor **AAD (Contract)**
Date: **for Accepting Officer**

APPENDIX 'A' TO NOTICE INVITING e- TENDER

1.	Name of work	:	**ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR**
2.	Estimated Cost of Work	:	**Rs 970.00 lakhs** at par Market
3.	Period of Completion	:	**15 (Fifteen)** months
4.	Cost of tender documents	:	Rs **3000**/- in the form of DD/Banker's cheque from any Scheduled bank in favour of **GE (I) (CG) Porbandar and Payable at Porbandar**.
5.	Website/portal address		https://defproc.gov.in and www.mes.gov.in
6.	Type of Contract		The tender shall be based on drawing and specification (IAFW-1779-A) (Revised 1955) and GCC (IAFW-2249) with BOQ to be quoted by tenderer.
7.	Publishing date and time of Tender documents	:	10 Jun 2019 at 1800 hrs
	Downloading of tender Documents	:	10 Jun 2019 at 1800 hrs
	Starting date and time of Bid submission (cover No1 & 2)	:	10 Jul 2019 at 1200 hrs
	Closing date and time of Bid submission (cover No1 & 2)	:	22 Jul 2019 at 1800 hrs
	Date and time of bid opening (Cover No 1)	:	25 Jul 2019 at 1200 hrs or subsequent
	Date and time of bid opening (Cover No 2)	:	Will be intimated online after completion of evaluation of tech bids/applications (cover No 1)
8.	**ELIGIBILITY CRITERIA**		
	(A) For MES Enlisted Contractors		All contractor enlisted with MES in class '**S**' and above and category **"(a)(i)"** subject to the remarks wrt performance in respect of wks in hand reflected in workload return (WLR) circulated by competent engineer authority. Refer Note - below
	(B) For contractors not enlisted with MES		(a) The firms not enlisted with MES shall meet the enlistment criteria of '**S**' class MES contractors & category **'a(i)'** i.e. with regards to having satisfactorily completed requisite value works, Annual turnover, solvency, working capital, immovable property/fixed assets, T& P, Engineering establishment, no recovery outstanding in any Govt Department, police verification/passport etc. As per enlistment criteria given in para 1.4 and 1.5 of section 1 part of I MES Manual on Contacts-2007 (Reprint 2012) as available in MES Formations. (b) These firms shall also submit copy of police verification from police authority of the area where the registered office of the firm is located / notarised copy of valid passport of proprietor/each partner/each Director. (c) Firm should not carry adverse remarks in WLR or any other similar report of any authority.
	(C) For All Contractors	:	Contractor will not be allowed to execute the work by subletting or through power of attorney holder on his behalf to a third party/another firm expect sons/ daughters/spouse of proprietor/ partner/ Director, and firms own employees, Director, Project Manager Project Manager. This shall be subject to certain conditions which will be prescribed in the NOT forming part of the tender documents.

APPENDIX 'A' TO NOTICE INVITING e- TENDER (Contd…)

Tender issuing and Accepting officer		HQ Chief Engineer Coast Guard Goa
Executing agency		GE (I) (CG) Porbandar
Earnest Money	:	**Rs 8,10,000.00** -in favour of **GE (I) (CG) Porbandar and Payable at Porbandar**

Notes :

(a) Contractor one class below may also bid for this tender. Their application shall be considered subject to fulfilment of other eligibility criteria given in NIT when number of applicants of eligible class qualifying for the tender are less than 7 (seven).

(b) In case number of eligible class contractors satisfying the eligibility criteria give in NIT are 7 or more than 7, application of one class below the eligible class shall not be considered except those who have previously completed similar works satisfactorily and are meeting the criteria of up gradation In respect of past experience and / or average annual turnover as applicable and financial soundness (solvency / financial soundness and working capital) provided the value of works is less than twice the tendering limit of such contractors. Contractors one class below the eligible class may upload necessary documents wrt works experience and financial soundness in cover 1 of tender (T bid).

(c) (i) Applications/ bid not accompanied by scanned copies of requisite DD/Bankers Cheque towards cost of tender and earnest money (as applicable) shall not be considered for validation of 'T' bid and their finance bids will not be opened.

(ii) Contractors should ensure that their original DDs and earnest money (as applicable) are received within __07__ days of bid submission end date.

(iii) In case of applications/bids from enlisted contractors of MES , where scanned copies of requisite DD/ Bankers Cheque towards cost of tender has been uploaded but physical copies are not received by the stipulated date, their finance bids will be opened. However non-submission of physical copies of cost of tender shall be considered as willful negligence of the bidder with ulterior motives and such bidder shall be banned from bidding for a period of six months commencing from the date of opening of finance bid (cover 2).

(iv) In case of applications / bids from un enlisted contractors , where scanned copies of requisite DD/ Bankers Cheque towards cost of tender has been uploaded but physical copies are not received by the stipulated date, finance bids will not be opened. Name of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commencing from the date if finance bid (cover 2).

(V) In case of applications / bids (enlisted contractor as well as un enlisted contractor) where scanned copies of requisite earnest money (as applicable) were uploaded but the same are not received in physical form within stipulated time, such bids shall not qualify for opening of finance bid (cover 2)

(d) Contractors may note that they shall not be loaded beyond their tendering limit as under:-

(aa) In case contractors of eligible class are selected for issues of tender : 4 to 5 times the tendering limit.

(bb) In case of one class contractors are selected for issue of tender : 6 to 7 times.

(cc) In case of unlisted contractors : 2 times the upper tendering limit of class for which contractor meets the criteria for enlistment.

APPENDIX 'A'TO NOTICE INVITING TENDER (NIT) (Contd…)

(d) In case any deficiency is noticed, in the documents required to be uploaded by the tenderness as per NIT, after opening of cover 1 (T bid) and during technical evaluation, a communication in the form of email/ whatsapp / sms / speed post etc. shall be sent to the contractor to rectify the deficiency within a period of 7days from date of communication failing which financial bid (cover 2) shall not be opened and contractor shall not have any claim on the same.

(e) Contractors enlisted with MES will upload following documents for checking eligibility:-

(i)Application for bid in firm's letter head

(ii)Enlistment letter

(iii)Scanned copy of DD of cost of tender

(f) Contractors not enlisted with MES wil be required to upload necessary documents to prove their eligibility for enlistment in eligible class & category of work, including Affidavit for no recovery outstanding. List of documents required for enlistment in MES has been given in para 1.5 of section 1 of part 1 MES Manual on Contractors 2007 (reprint 2012). Following documents shall also be uploaded amongst others:

(i) Details of three highest values similar nature of works executed during last five years, financial year –wise in tabular form giving name of work, Accepting Officer's details, viz, Address, Telephone, Fax No, E- mail ID etc, date of acceptance of tender and actual date of completion. This shall be duly signed by proprietor / all partners / authorized Director of Pvt/Public Ltd, as applicable. It should indicate whether extension was granted or compensation was levied. Attested copy of acceptance letter and completion certificate shall be enclosed of each work. In case performance report has been given by the client same shall also be submitted duly attested.

(ii) Solvency certificate and working capital certificate issues by schedules bank.

(iii) Annual turnover certificate for last 2 years issues by Chartered accountant along with relevant pages of audited balance sheets in support thereof

(iv) Affidavits for possession of movable & immovable properties by proprietor / partner owning the immovable property along with valuation certificate from Regd valuer in support of movable & immovable properties. In case if Limited Company, the immovable property is required to be in the name of the company.

(v) In addition, the un-enlisted contractors shall also furnish affidavit on non – judicial stamp paper in the form of hard copy declaring their turnover for last 2 (two) years.

(vi) Scanned copy of DD of cost of tender and earnest money.

(h) In case of rejection of technical /prequalification bid, contractor may appeal to next higher engineer Authority i.e. **HQ Additional Director General (Projects), Military Engineer Services, Indian Coast Guard Air Station Complex, Rudhra Road, St Thomas Mount, Chennai-600 016** on email id **adgpchn-mes@nic.in** against rejection, whose decision shall be final and binding. However Contractor/bidder shall not be entitled to any compensation whatsoever for rejection of technical/Prequalification bid

Signature of contractor

File. No. 81012/ 02 /E8

(T V Ratnam)
AE (QS & C)
AAD (Contracts)
for Chief Engineer

10 Jun 2019

HQ, Chief Engineer (Coast Guard)
Military Engineer Services
Coast Guard Air Enclave
Dabolim, Goa– 403 801

INSTRUCTIONS ON FILLING AND SUBMISSION OF TENDER

1. **EARNEST MONEY DEPOSIT (EMD)**

Contractor(s) who are not enlisted with MES / who are enlisted but have not executed the Standing Security Bond shall submit Earned Money Deposit as detailed in Notice of Tender in one of the following forms, along with their tender / bid :-

(a) Deposit at Call Receipt from a Scheduled Bank in favour of **GE (I) (CG) Porbandar**.

(b) Receipted Treasury Challan, the amount being credited to the Revenue Deposit of **GE (I) (CG) Porbandar**.

It is advisable that Earnest Money is deposited in the form of deposit call receipt from an approved Scheduled Bank for easy refund. In case the tender / bidder wants to lodge 'EARNEST MONEY DEPOSIT' in any other form allowed by MES, a confirmation about its acceptability will be obtained from the Accepting Officer well in advance of the bid submission end date and time. Earnest Money Deposit shall be submitted in the name of concerned GE.

NOTES: Earnest Money Deposit (EMD) in the form of cheque /Bank Guarantee etc will not be accepted. NON-SUBMISSION OF EARNEST MONEY DEPOSIT (EMD) (scanned copy alongwith Technical Bid & hard copy before the date & time fixed for opening of BOQ) WILL RENDER THE BID DISQUALIFIED FOR OPENING OF COVER II (FINANCE BID)

2. **SECURITY DEPOSIT**

In case the tender / bid submitted by such contractor who is not enlisted with MES is accepted, the contractor will be required to lodge with Controller of Defence Accounts INDIVIDUCAL SECURITY DEPOSIT calculated with reference to TENDERED COST as notified by the Accepting Officer subject to a maximum of Rs 1875000/-. The amount is required to be lodged within 30 (Thirty) days of the receipt by the contractor of notification of acceptance of tender / bid, failing which the sum shall be recovered from the 1sr RAR payment or from the Final Bill (See Condition 22 of GCC (IAFW-2249)).

3. **CONTRACTORS ENLSITED WITH CHIEF ENGINEER COMMAND AND WHO HAVE EXECUTED STNDING SECURITY BOND AND DEPOSITED STANDING SECURITY DEPOSIT BUT OF LOWER CLASS.**

In case the tender /bid is accepted, the amount of Additional Security Deposit will be as notified by the Accepting Officer, The amount will be the difference between the "Individual Security Deposit" calculated with reference to the "TENDERED COST" and "Standing Security Deposit" lodged. The amount is required to be lodged within 30 (Thirty) days of the receipt by the contractor of notification of acceptance of tender / bid, failing which the sum shall be received from the 1st RAR payment or from the Final Bill (Refer Condition 22 of GCC (IAFW-2249)).

4. **CONTRACTORS ENLISTED IN MES FORMATIONS OTHER THAN CE SOUTHERN COMMAND**

Contractor whose names are on the approved list of any MES formation i.e other than CE Southern Command and who have deposited Standing Security and have executed Standing Security Bond may tender / bid without depositing Earnest Money with the bid and if the Accepting Officer decides to accept the tender / bid, such tenderer will be required to lodge Security Deposit as notified by the Accepting Officer. The amount is required to be lodged within 30 (Thirty) days of the receipt by the contractor of notification of acceptance of tender / bid, failing which the sum shall be recovered from the 1st RAR payments or from the Final bill.

5. GENERAL INSTRUCTIONS FOR COMPLIANCE

5.1 The bids received only in the electronic form will be considered. All bids shall be submitted on 'eprocuremes.gov.in' portal. Documents should be scanned and forwarded in `pdf' form and 'xls' form as indicated.

5.2 Bid shall be uploaded on 'eprocuremes.gov.in' portal on or before the bid closing date mentioned in the tender. No tender/bid in any other electronic or physical form like email / fax / by hand/ through post will be considered.

5.3 Bid should be DIGITALLY signed using valid DSC. All pages of tender documents, corrections/ alterations shall be signed/ initialled by the lowest bidder after acceptance.

INSTRUCTIONS ON FILLING AND SUBMISSION OF TENDER (CONTD…)

5.4 Drawings, if issued in physical form, must be returned duly initialled by the tenderer /bidder in separate envelope indicating his name and address.

5.5 The tender shall be signed, dated and witnessed at all places provided for in the documents after acceptance. All corrections shall be initialled. The Contractor shall initial every page of tender and shall sign all drawings forming part of the tender. Any tender/bid, which proposes alterations to any of the conditions whatsoever, is liable to be rejected.

5.6 In the technical bid, a scanned copy of Power of Attorney in favour of the person uploading the bid using his/her DSC shall be uploaded. In case the digital signatory himself is the sole proprietor, scanned copy of an affidavit on stamp paper of appropriate value to this effect stating that he has authority to bind the firm in all matters pertaining to contract including the Arbitration Clause, shall be attached in '.pdf' form. In case of partnership concern or a limited company, digital signatory of the bid/tender shall ensure that he is competent to bind the contractor (through partnership deed, general power of attorney or Memorandum and Articles of Association of the Company) in all the matters pertaining to the contracts with Union of India including arbitration clause. A scanned copy of the documents confirming of such authority shall be attached with the tender/bid in '.pdf' form, if not submitted earlier. The person uploading the bid on behalf of another partner(s) or on behalf of a firm or company using his DSC shall upload with the tender/bid a scanned copy (in '.pdf' form) of Power of Attorney duly executed in his favour by such other or all of the Partner(s) or in accordance with constitution of the company in case of company, stating that he has authority to bind such other person of the firm or the Company, as the case may be, in all matters pertaining to the contract including the Arbitration Clause.

5.7 Even in case of Firms or Companies which have already given Power of Attorney to an individual authorizing him to sign tender in pursuance of which bids are being uploaded by such person as a routine, fresh Power of Attorney duly executed in his favour stating specifically that the said person has authority to bind such partners of the Firm, or the Company as the case may be, including the condition relating to Arbitration Clause, should be uploaded in `pdf' form with the tender/bid; unless such authority has already been given to him by the Firm or the Company. It shall be ensured that power of attorney shall be executed in accordance with the constitution of the company as laid down in its Memorandum & Article of Association.

5.8 Hard copies of all above documents should be sent by the contractor to the Tender issuing authority well in advance to be received before the date & time fixed for the same.

5.9 Bid (Cover 1 & 2) shall be uploaded online well in time.

5.10 The contractor shall employ Indian Nationals after verifying their antecedents and loyalty. Attention is also drawn to special condition 3 referred hereinafter and also conditions 24 & 25 of IAFW 2249 (General conditions of contract).

5.11 Tenderers/bidders who uploaded their priced tenders/bids and are desirous of being present at the time of opening of the tenders/bids, may do so at the appointed time.

5.12 The tenderer/bidder shall quote his rate on the BOQ file only. No alteration to the format will be accepted, else the bid will be disqualified and summarily rejected.

5.13 In case the tenderer/bidder has to revise / modify the rates quoted in the BOQ (excel sheet) he can do so only in the BOQ, through eprocuremes.gov.in site only before the bid closing time and date.

6. REVOKATION/REVISION OF OFFER UPWARD/ OFFERING VOLUNTARY REDUCTION, AFTER OPENING OF FINANCIAL BIDS BY LOWEST BIDDER

In the event of lowest tenderer/bidder revoking his offer or revising his rates upward/ offering voluntary reduction, after closing of bid submission date & time, his offer will be treated as revoked and the Earnest Money deposited by him shall be forfeited. In case of MES enlisted Contractors, the amount equal to the Earnest Money stipulated in the Notice of tender, shall be notified to the tenderer/bidder for depositing the amount through MRO. Bids of such Contractors/bidders shall not be opened till the aforesaid amount equal to the earnest money is deposited by him in Govt Treasury. In addition, bids of such tenderer/bidder and his related firm shall not be opened in second call or subsequent calls. Reduction offered by the tenderer/bidder on the freak high rates referred for review shall not be treated as voluntary reduction.

INSTRUCTIONS ON FILLING AND SUBMISSION OF TENDER (CONTD…)

7. C P M (Critical Path Method)

7.1 The project planning for work covered in the scope of tender is based on CPM.

7.2 The tenderer/bidder is expected to be fully conversant with the CPM technique and employ technical staff who can use the technique in sufficient details. Sufficient books and other literature on the subject are widely available in the market which the tenderer, /bidder may make use of.

7.3 The tenderer's/bidder's attention is drawn to special condition of the tender regarding preparation of the detailed network analysis and time schedule for the work and his liability for employing sufficient resources to adhere to this schedule. Any inability on the part of the tenderer/bidder in using the technique will be taken as his technical inefficiency and will affect his class of enlistment and future prospect/invitation to tenders for future works.

7.4 Department may issue amendments/errata in form of CORRIGENDUM to tender /revised BOO to the tender documents. The tenderer/bidder is requested to read the tender documents in conjunction with all the errata/ amendments/corrigendum, if any, issued by the department.

8. These instructions shall form part of the contract documents.

SIGNATURE OF CONTRACTOR
DATE:

AAD (Contracts)
for Accepting Officer

.

In lieu of IAFW-2159 (Revised 1947)
[To be used in conjunction with General Conditions of Contracts IAFW-2249) (1989Print)]

MILITARY ENGINEER SERVICES

Tel: 253 1035

HQ, Chief Engineer (Coast Guard)
Military Engineer Services
Coast Guard Air Enclave
Dabolim, Goa– 403801

81012/ 03 /E8 **10 Jun 2019**

M/s _____

"TENDER AND CONTRACT FOR WORKS REQUIRED IN THE EXECUTION OF ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR

Dear Sir,

Shri / S`Shri _____of _____is / are hereby authorised to tender for the above work. The e-Tender to be uploaded at the MES website **www.eprocuremes.gov.in** and https://defproc.gov.in on date and time as per critical dates given in the tender document and Bids (Cover 1& 2) will be opened on date and time as per critical dates given in the tender document. All correspondence concerning this tender should be addressed as indicated at the top of the sheet quoting reference as given.

THE PRESIDENT OF INDIA DOES NOT BIND HIMSELF TO ACCEPT THE LOWEST OR ANY TENDER

Signature Of Officer Issuing Documents

Appointment : AAD (Contracts)

Signature of Contractor
Date

SCHEDULE 'A' NOTES

Name of Work : **"ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR"**

Notes :

1. The entire work included under this contract shall be completed within **15 (Fifteen) Months** from the date of handing over of site as indicated in Work Order No 1. The work included under the scope lies at **Porbandar**. If the tenderers desired to visit to sites and to know the approximate quantities of each item required for each area, they may approach **GE (I) (CG) Porbandar.**

2. For Schedule of items refer BOQ sheet in excel format.

3. **BLANK**

4 The Bidder shall enter the unit rate in column 6 of BOQ in MES Portal www.defproc.gov.in . The unit rates in figure shall only be entered by bidder and rate in words will be generated by the system.

5. Unless otherwise specifically stated in the description of the items, the unit rates quoted in Column 6 shall be deemed to include for all labour and materials complete required for executing the respective items of works.

6. Unit rate quoted by the tenderers in Sch 'A' will be deemed to allow for all minor extra and constructional details which are not specifically given in Sch 'A' or in particular specifications but are essential to the execution of work in a workman like manner and keeping with standard Engineering practice. In case of difference of opinion as to whether or not a certain items of work constitute "Minor extras and constructional details" included in the contractor's price between the contractor and the GE, decision of the Accepting Officer shall be final, conclusive and binding on all.

7. Tenderers shall be deemed to have inspected the site and ascertained for themselves the works to be carried out for the full and entire completion of the work all as specified.

8. The description of Schedule 'A' items in BOQ sheet (Excel format) shall be read in conjunction with particular specifications, special condition and SSR provision etc.

9. All the items unless otherwise described as "supply only", "Fixing only" shall be deemed to be inclusive of "Materials and labour", Supply and fixing, Testing commissioning, installation complete.

10. All royalty and cess charges for Bricks, stone aggregate, sand, other boulders including all earthwork done at site of work and other allied items for which royalty and cess charges are levied by State Government as per statutory rules/law shall be deemed to be included in unit rates quoted by contractor for the items of Sch `A'(BOQ sheet in excel) and no claim whatsoever on this account is admissible. The contractor shall be solely responsible to pay necessary royalty and cess charges and the same shall be recovered from any payment due to the contractor and remitted to the State revenue authorities in case of default/ dispute of any or on receipt of demand notice from them.

11. Since the work lies in restricted area, carrying camera enabled mobile phone by contractors or their agents are strictly prohibited. Also all vehicles brought by contractors in connection with execution of work shall possess valid papers and license and shall produce for security check. The contractor, his agents, work people etc shall adhere to the security instructions as laid down in the contract conditions strictly. No claim whatsoever for observance of restrictions imposed at site shall be admissible at any stage of work.

12. Contractors quoted rate shall be deemed to include for cost of testing of materials as per relevant IS codes.

13. **DEFECT LIABILITY PERIOD** : In term of Condition 46 of IAFW 2249 General Condition of Contract (as amended vide amendment No 48) of the defect liability period for the subject work shall be 24 (Twenty four) calendar Months after the works have been handed over to Government.

SCHEDULE 'A' NOTES (Contd…..)

14. PERFORMANCE SECURITY (Refer Condition of IAFW-2249 General Condition of Contract)

14.1 Within 28 days of receipt of the letter of Acceptance, the successful contractor shall deliver to the Accepting Officer a Performance Security in any of the forms given below for an amount equivalent to 5% of the contract sum :-

(i) A Bank Guarantee in the prescribed form.

(ii) Government Securities, FDR or any other Government instruments stipulated by the Accepting Officer.

14.2 If the performance security is provided by the successful Contractor in the form of a Bank Guarantee, it shall be issued by Nationalized / Scheduled Indian Bank but its confirmation shall be done only from the Head Office of the Bank.

14.3 Failure of the successful contractor to comply with the requirements of sub-clause 14.1 shall constitute sufficient grounds for cancellation of the award of work and forfeiture for the Earnest Money. In case of MES enlisted contractor, amount equal to the Earnest Money stipulated in the Notice Inviting Tender, shall be notified to the tenderer for depositing the amount through MRO. Issue of tender to such tenderers shall remain suspended till the aforesaid amount equal to the Earnest Money is deposited in Government Treasury.

14.4 All compensation or other sums of money payable by the contractor to the Government under terms of this contract or under any other contract with Government may be deducted from or paid by the sale of a sufficient part of the Performance Security or from the interest arising there from or from any sums which may be due or become due to the contractor by the Government on any account whatsoever and in the event of his Performance Security being reduced by reason of any such deduction, or sale a aforesaid, the contractor shall within ten days thereafter make good in cash or securities, endorsed as aforesaid, and sum or sums which may have been deducted from or realized by the sale of his Performance Security or any part thereof.

14.5 Government shall not be responsible for any loss of securities or any depreciation in the value of securities while in their charge nor for loss of interest thereon.

14.6 In the event of contract being cancelled, under Condition 26, 27 & 28 of General Conditions of Contract, the Performance Security shall be forfeited in full and shall be credited into Consolidated Fund of India.

15. REFUND OF PERFORMANCE SECURITY (**Refer Condition of IAFW-2249 General Condition of Contract)**) – The Performance security Deposit mentioned hereinbefore may be refunded to the contractor after expiration of the defects liability period (ref Sch A notes) by the GE provided always that the contractor shall first have been paid the final bill and rendered a No-Demand Certificate (IAFW-451). Any recovery if outstanding against the contractor shall be effected from the performance security as stipulated under condition of IAFW-2249 (as amended).

AAD (Contracts)
for Accepting Officer

Signature of contractor
Dated :

SCHEDULE OF CREDIT

NAME OF WORK: ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR

1. Quantities shown in column 4 are approximate. Entire quantity measured under dismantling under Schedule 'A' will be considered for Schedule of Credit.

2. After approval of Engineer-in-Charge and after deducting the amount form RAR/Final Bill the dismantling materials shall become the property of the Contractor and the same shall be removed immediately from site (Outside MD Land) with the written permission of the Engineer-in-Charge.

3. The rates inserted by the Department against item of schedule of credit are firm and the Contractor will not claim whatsoever against the department, if the actual cost of salvaged materials turns out to be different from the rate assessed by the department.

4. Contractor is advised to visit the site and verify the Condition at site and assess the credit and quote Schedule A' rates accordingly. No compensation whatsoever will be entertained for actual condition of demolished material and amount of salvage materials listed in Schedule of credit.

5. The demolished / dismantled materials which are Contractor's property vide schedule of credit shall not be used in the works covered under Schedule 'A'.

6. Other serviceable materials other than listed in schedule of credit shall be removed to MES Store Yard by the Contractor at his own expense I.e. transport, loading, unloading etc shall be borne by the Contractor. No extra payment will be made on this account.

Ser No	Description of Items	A/U	Qty	Rate (in Rupees)	Amount (in Rupees)
1.	Old steel obtained from sliding doors	KG	80000	18.00	14,40,000.00
2.	Old GI Sheets corrugated	Sqm	1600	85.00	1,36,000.00
3.	Old Galvalume Sheet plain	Sqm	1400	180.00	2,52,000.00
				Total	**18,28,000.00**

Total amount of Rs 18,28,000.00 Schedule of credit carried out to General Summary

Signature of Contractor
Dated :

AAD (Contract)
For Accepting Officer

SCHEDULE 'B'

ISSUE OF MATERIALS ETC TO CONTRACTOR
(SEE CONDITION-10 OF IAFW-2249)

Srl No	Description of materials	Rate at which materials will be issued to contractor		Place of issue by name	Remarks
		Unit	Rate in Rs.		
1	2	3	4	5	6

-NIL-

SIGNATURE OF CONTRACTOR **FOR ACCEPTING OFFICER**
DATED: _____

SCHEDULE 'C'

LIST OF TOOLS AND PLANT (OTHER THEN TRANSPORT)
WHICH WILL BE HIRED TO THE CONTRACTORS)
(See Condition 15, 34 & 35 of IAFW-2249)

SN	Quantity	Particulars	Details of crew	Hire charges per unit per working day	Standby charges per unit per off day	Place of issue	Remarks
1	2	3	4	5	6	7	8

.....NIL……

SIGNATURE OF CONTRACTOR **FOR ACCEPTING OFFICER**
DATED: _____

SCHEDULE 'D'

TRANSPORT TO BE HIRED TO THE CONTRACTOR)
(See Condition 16 & 35 of IAFW-2249)

S N	Quantity	Particulars	Rate per unit per working day	Place of issue by name	Remarks
1	2	3	4	5	6

----------NIL----------

SIGNATURE OF CONTRACTOR **FOR ACCEPTING OFFICER**
DATED: _____

TENDER

To,

The President of India Having examined and perused the following documents: -

1. Specifications signed by Director/Deputy Director (Contracts) / AAD (Contracts)

2. Drawings details in the specifications.

3. Schedule 'A', 'B', 'C', 'D' attached hereto.

4. MES Standard Schedule rates Part I (2009) & Part II (2010) (here-in-after referred to as the MES schedule) together with amendments Nos **01 to 58** for Part II

5. General Conditions of contracts, IAFW-2249 (1989 print) together with errata No **1 to 20** and amendments **1 to 48.**

6. Water: - Condition 31 of IAFW-2249 General Condition of Contract. **Water will not be supplied by MES**

Should this tender be accepted, I/We agree

(a) That the sum of **Rs 8,10,000.00 (Rupees Eight Lakh and Ten Thousand Only) forwarded as Earnest Money shall either be retained as part of security deposit or be refunded by the Government on receipt of the appropriate amount of Security Deposit, as per condition 22 of IAFW-2249.

(b) To execute all the works referred to in the said documents upon the terms and conditions contained or referred to therein and as detailed in General Summary below or at such other rates as may be fixed under the provision of Condition 62 of IAFW-2249 and to carry out such deviations as may be ordered vide Condition 7 of IAFW-2249 upto a maximum of 10% (TEN PERCENT) and further agree to refer all disputes, as required by Condition 70 of IAFW-2249 to the Sole Arbitration of a Serving Officer having degree in Engineering or equivalent or having passed final/direct final examination of Sub-division II of the Institution of Surveyors (India) recognised by the Govt. of India to be appointed by the Engineer - in - Chief or in his absence the Officer Officiating as Engineer - in - Chief or Director General of Works if specially delegated in writing by the Engineer - in - Chief, Army Headquarters New Delhi whose decision shall be final, conclusive and binding.

** To be deleted where NOT applicable.

GENERAL SUMMARY

1.	**Total Amount brought forward from BOQ Serial Page No.**	**Rs**	
2.	**Deduct Total amount of Schedule of Credit**	**(-) Rs**	**18,28,000.00**
3.	**Lump sum amount**	**Rs**	

(Rupees_____

_____only)

Signature of Contractor
Dated:

AAD (Contract)
for Accepting Officer

In lieu of IAFW-2159 (Revised 1947)

Total brought forward from BOQ on serial page No. 50 for the Lump Sum of Rs.._____/- (**Rupees**_____

_____**only**)

Signature _____ in the capacity of _____ duly authorized to sign the tender for and on behalf of Messer's_____

(BLOCK CAPITALS)

Name of the Signatory: _____
(IN BLOCK CAPITALS)
Date : _____

Postal Address : _____
_____
_____

Witness _____ **Telegraphic Address:** _____

Address _____ _____
_____ _____
_____

Telephone: _____
_____

NAME OF WORK: PROVISION OF OFFICERS MD ACCN AT ICGS RATNAGIRI

A C C E P T A N C E

_____ Alterations have been made in these documents and as evidence that these alterations were made before the execution of the Contract Agreement these have been initialed by the Contractor and **S'Shri/Shri T Venkata Ratnam, AAD (Contracts)**.

The said Officer/Officers is/are hereby authorized to sign and initial on my behalf the documents forming part of this contract.

The above tender was accepted by me on behalf of the President of India for the Lump Sum of

(Rupees_____

_____only)

on the _____day of_____ 2019.

Signature_____dated this _____day of_____ 2019.

(FOR AND ON BEHALF OF THE PRESIDENT OF INDIA)
The Chief Engineer (Coast Guard)
Dabolim, Goa– 403 801
Accepting Officer

NAME OF WORK : ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR

GENERAL CONDITIONS OF CONTRACTS - IAFW 2249 (1989 PRINT)

A copy of the GENERAL CONDITIONS OF CONTRACTS - IAFW 2249 (1989 Print) with errata 1 to 20 and amendment No. 1 to 48 has been supplied to me/us, has been perused by me/us and is in my/our possession. I/We have read and understood the provisions contained in the aforesaid GENERAL CONDITIONS OF CONTRACTS before submission of this tender and I/We shall abide by the terms and conditions thereof, as modified if any, elsewhere in these tender documents.

It is hereby further agreed and declared by me/us, that the GENERAL CONDITIONS OF CONTRACTS, IAFW-2249 (1989 Print) including condition 70 thereof pertaining to settlement of disputes by arbitration, containing 33 pages (serial page Nos. 25 to 57) with errata 1 to 20 and amendment Nos. 1 to 48 (serial page Nos. 58 to 91) form part of these tender documents.

Note: In case of difference in interpretation due to wordings of English and Hindi versions of the General Conditions of Contracts (IAFW-2249) (1989 Print), the English version will prevail.

Signature of Contractor
Dated:

AAD (Contract)
for Accepting Officer

NAME OF WORK: PROVISION OF OFFICERS MD ACCN AT ICGS RATNAGIRI

SCHEDULE OF MINIMUM FAIR WAGES

It is hereby agreed that the `Schedule of Minimum Fair Wages' as published vide Government of India / State Govt. / Union Territory latest Notification forms part of these tender documents. My/Our signature hereunder amounts to my/our having read and understood the provisions contained therein and I/we agree that I/we shall abide by the same and that aforesaid documents form part of this tender.

Signature of Contractor
Dated:

AAD (Contract)
for Accepting Officer

SPECIAL CONDITIONS

1.1 **GENERAL**

1.1.1 The following conditions shall be read in conjunction with General Conditions of Contracts IAFW-2249 (1989 Print) and IAFW-2159 (Revised 1947)/IAFW-1779-A (Revised 1955) including errata and amendments thereto.

1.1.2 If any provision in these special conditions is at variance with the provisions of the above mentioned documents, provisions in these special conditions shall be deemed to take precedence there over.

1.2 VISIT TO SITE

The tenderer is advised to inspect the site, by prior appointment with Garrison Engineer, to ascertain the nature of site, access thereto, local facilities for procurement of materials, working hours and labour rates prevalent in the area and all other matters affecting his price in the tender for execution and the completion of the work. The tenderer shall be deemed to have full knowledge of the site (s) whether or not he actually visits it/these. For the purpose of collection of materials and execution of the works, the site will be considered as lying in area as mentioned in clauses hereinafter.

1.3 SECURITY AND PASSES

1.3.1 Tenderers attention is invited to condition 25 of IAFW-2249. He shall employ only Indian Nationals after verifying their antecedents and loyalty. He shall ensure that no person of doubtful antecedents and nationality is, in any way, associated with work. If for reasons of technical collaboration or other consideration, the employment of any foreign national is unavoidable, the contractor shall furnish full particulars to this effect to the Accepting Officer at the time of submission of his tender. The contractor shall on demand by the Engineer-in-Charge, submit a list of his agents, employees and work people concerned and shall satisfy the Engineer-in-Charge as to the bonafide of such people.

1.3.2 The Engineer-in-Charge shall, at his discretion has the right to issue passes, as per rules and regulations of the installation/area in force, to control the admission of the contractor, his agents, employees and work people to the site of the work or any part thereof. Passes shall be returned on any time on demand by the Engineer-in-Charge or the authorities concerned and in any case on completion of work.

1.3.3 The contractor and his agents, employees and work people shall observe all the rules promulgated by the authority controlling the installation/area in which the work is to be carried out e.g. prohibition of smoking and lighting, fire precautions, search of persons at entry and exit, keeping to specific routes, observing specified timings etc. Nothing extra shall be admissible for any man hours etc lost on this account.

1.4 MATERIALS AND SAMPLES

1.4.1 Refer condition 10 of IAFW-2249 and clause 1.6 & 1.7 of MES Schedule.

1.4.2 Materials provided by the contractor for incorporation in the works shall, unless otherwise specified in the particular specifications be ISI marked. IS means Indian Standards as issued by the Bureau of Indian Standards. Wherever in the specifications `IS' is referred to, it means the edition with all amendments, current on the due date of receipt of the tender documents.

1.4.3 The tenderer is advised to inspect other materials, which are displayed in the office of GE, before submitting his tender. The tenderer shall be deemed to have inspected the samples and satisfied himself as to the nature and quality of materials, he is required to incorporate in the work irrespective of whether he has actually inspected them or not. The materials to be incorporated in the work by the contractor shall be ISI marked or shall be equal or superior in quality to sample displayed and shall comply with the specifications given hereinafter.

1.4.4 The contractor shall produce samples of all materials, articles, fittings, accessories etc. that he proposes to use and get these approved in writing by the Garrison Engineer within reasonable time from the date of commencement of work as per work order. The materials, articles, etc. as approved shall be labelled as such and shall be signed by the GE and contractor's representative. These samples shall be kept in the custody of the Garrison Engineer/Engineer-in-Charge.

1.4.5 The contractor shall not procure materials unless the samples are first got approved by the Garrison Engineer.

1.4.6 The brand of all materials, articles, fittings, etc. approved together with the names of the manufacturers and firms from which supplies have been arranged shall be recorded.

1.4.7 (a) A list of items/articles, which are having ISI certification mark and are readily available, is given in Appendix `A'. It is mandatory that ISI certified marked items/articles as listed in Appendix `A' shall be incorporated in the work.

(b) The Govt. reserves the right to get the items/articles listed in Appendix `A' tested in approved laboratories. The cost of sample for testing shall be borne by the contractor and the remaining expenses such as cost of transportation of sample to laboratory and testing fee shall be borne by the Govt., if the test result is found to be satisfactory. However, in the event of the test result being found unsatisfactory, the entire cost of testing including cost of sample shall be borne by the contractor. Government may get more than one sample of the same materials tested and the cost of such testing shall be borne by the Government.

1.5 PROPRIETORY/ BRANDED MATERIAL

1.5.1 Proprietary/branded materials such as paints, chemicals for Antitermite treatment, bitumen, waterproofing compound etc, quantity of which cannot be checked after incorporation in the work, shall when collected at site, be recorded in measurement book and signed both by the Engineer-in-Charge and the contractor as a check to ensure that the required quantity has been brought at site for incorporation in the work.

1.5.2 Materials brought to site shall be stored as directed by the Engineer-in-Charge and those already recorded in measurement book shall be suitably marked for identification.

1.5.3 The contractor shall obtain proprietary/ branded materials from manufacturers or from manufacturer's authorised stockists where such authorised stockist has been appointed. The contractor shall, on demand, produce original receipted vouchers/ invoices of suppliers to the Garrison Engineer, to ensure that the contractor has actually brought the required quantity of the materials from the authorised dealers/manufacturers and also to be find out the rates thereof. The original vouchers/ invoices shall be defaced and stamped by Engineer-in-Charge, indicating contract number, name of work, under his dated signature. The contractor shall ensure that the materials are brought to site, in original sealed containers/ packing bearing manufacturer's marking except in the case of the requirement of material(s) being less than the smallest packing.

1.5.4 **PRODUCTION OF VOUCHERS FOR MATERIALS**

Contractor shall produce original purchase vouchers/Invoices challan along with Test Certificate wherever applicable from the manufacturers and or their autherised agents for the full quantity of the materials as applicable as a prerequisite documents before submitting claims for payment for advance on account of materials lying at site in accordance with condition 64 of IAFW-2249, General Conditions of Contracts. However, vouchers in respect of cement, steel, PP-R pipes, precast cable cover, LT panel board, GI pipes, VCB, APFC power panel, major E/M equipments e.g. Transformers, DG sets, Pumps, motors, AC and all equipments shall be submitted invariably.

1.5.5 The vouchers shall be endorsed, dated and initialled by the Engineer-in-Charge giving the contract number and name of work. A certified copy of each of such vouchers signed both by Engineer-in-Charge and the contractor shall be kept on record.

1.5.6 When the cost of each category of material is less than Rs.1,000/- production of voucher may not be insisted upon, if the Garrison Engineer is otherwise satisfied with the quality & quantity of material brought by contractor.

1.6 TIME AND PROGRESS (CPM CHART)

1.6.1 The CPM Chart to be prepared as per Condition 11 of IAFW-2249 (General Conditions of Contracts) shall consist of detailed net work analysis and a time Schedule. The critical path net work will be drawn jointly by the Garrison Engineer and the contractor soon after acceptance of the tender. The contractor so as to finish the work within the stipulated time will do the time scheduling of the activities. On completion of the time schedule, firm calendar date Schedule will be prepared and submitted by the contractor to the Garrison Engineer who will approve it after due scrutiny. The Schedule will be submitted in four copies within two weeks from the date of handing over the site.

1.6.2.1 During the currency of the contract, the contractor is expected to adhere to the time schedule and this adherence will be a part of the contractor's performance under this contract. During the execution of work, the contractor is expected to participate in the reviews and updating of the net work undertaken by the GE. These reviews may be undertaken at the discretion of the Garrison Engineer either as a periodic appraisal measure or when the quantum of work ordered on the contractor is substantially changed through

deviation orders or amendments. Any revision of the time schedule as a result of the review will be submitted by the contractor to the Garrison Engineer within a week for his approval after due scrutiny. The contractor will adhere to the revised schedule thereafter. In case of contractor disagreeing with the revised schedule the same will be referred to the Accepting Officer, whose decision will be final, conclusive and binding. Garrison Engineer's approval to the revised schedule resulting in a completion date beyond the stipulated date of completion shall not automatically amount to a grant of extension of time.

1.6.2.2 Extension of time shall be considered and decided by the appropriate authority mentioned in condition 11 of IAFW-2249 and separately regulated.

1.6.3 The contractor shall mobilise and employ sufficient resources to achieve the detailed schedule within the broad frame work of the accepted methods of working and safety.

1.6.4 No additional payment will be made to the contractor for any multiple shift work or other intensive methods contemplated by him in his work schedule, even though the department approves the time schedule.

1.7 **SECURITY OF CLASSIFIED DOCUMENTS**

Contractor's special attention is drawn to condition 2-A and 3 of General Conditions of Contracts (IAFW-2249). The contractor shall not communicate any classified information regarding the works either to sub-contractors or others without prior approval of the Engineer-in-Charge. The contractor shall also not make copies of the design/drawings and other documents furnished to him in respect of the works and he should return all documents furnished to him in respect of the works on completion of the work or earlier termination of the contract. The contractor shall along with the final bill, attach a receipt from the Engineer-in-Charge in respect of his having returned the classified documents as per condition 3 of General Conditions of Contracts (IAFW-2249).

1.8 **FAIR WAGES**

The contractor shall have no claims, whatsoever if on account of any rules and regulation or otherwise he is required to pay wages in excess of the fair wages shown in the schedule of wages under condition 58 of General Conditions of Contracts IAFW-2249.

1.9 **PERIOD FOR KEEPING TENDER OPEN**

The tender shall remain open for acceptance for a period of 60 (Sixty) days from the date specified for its submission.

1.10 RECORD OF CONSUMPTION OF CEMENT

1.10.1 For purpose of keeping record of cement brought by contractor and consumed in works, the contractor shall maintain a pucca bound register, with serially numbered pages with all pages initialled by Engineer-in-Charge against numbering, in the form approved by the Engineer-in-Charge showing daily receipts of cement brought by contractor, quantity used in works and balance in hand. The register shall be signed daily by representative of MES and contractor in token of their verification of its correctness and will be checked by Engineer-in-Charge, at least once a week and on the days cement is brought by contractor.

1.10.2 The aforesaid provision will not however, absolve the contractor of his responsibility to justify the consumption of cement at the time of finalisation of his accounts.

1.10.3 The register shall be kept at site in the safe custody of the contractor during progress of the work and he shall on demand produce the same for verification by inspecting officers. On completion of the works cement register shall be handed over to the Engineer-in-Charge for record with MES.

1.11 ROYALTIES

Delete the existing condition 14 of IAFW-2249 and insert the word "BLANK" in lieu.

1.12 LAND AND LABOUR ACCOMMODATION, AND STORES AND WORKSHOP ETC.

1.12.1 Delete lines 5 to 9 of Para 1 of Condition 24 of General Conditions of Contracts IAFW -2249 i.e. from "In the event of area of land" to "land allotted to him" and insert as under:- "The contractor shall be allotted, the area as marked on the layout plan for the purpose of erection of temporary workshop, stores for which he shall pay the nominal rent of Re.1/- per year or part of a year. No MD land is available for accommodation of labour and canteen in restricted area for which the contractor shall make his own arrangement at his own expense."

1.12.2 The contractor will not be allowed to quarry/ win earth from MD land.

SPECIAL CONDITIONS (CONTD/-)

1.13 CO-OPERATION WITH OTHER AGENCIES

1.13.1 The contractor shall permit free access and generally afford reasonable facilities to other agencies or departmental workmen engaged by Government to carry out their part of the work, if any, under separate arrangements.

1.13.2 The contractor's prices shall be deemed to cater for all the above contingencies and nothing extra shall be admissible on this account.

1.14 LABOUR (REGULATION & ABOLITION) ACT

1.14.1 Contract labour (Regulation & Abolition) Act 1970 is applicable to MES contractors. Rates quoted by the tenderer shall be deemed to take into account the cost, etc., required to comply with the provisions contained in the said act and the rules framed under the said act.

1.14.2 Refer Condition 58 of IAFW-2249. The "Schedule of Minimum Wages" as published vide Govt. Of India Notification as available on date of receipt of tender forms part of these tender documents. However, the contractor shall not pay wages lower than minimum wages for labour as fixed by the Govt. Of India/ State Govt./ Union territory under Minimum Wages Act or Contract Labour (Abolition and Regulation Act), whichever is higher.

1.14.3 The fair wages referred to in condition 58 of IAFW-2249 will be deemed to be the same as the minimum wages payable as referred to above.

1.14.4 The contractor shall have no claim whatsoever, if on account of local factors and/or regulations, he is required to pay the wages in excess of minimum wages as described above during the execution of work.

1.15 WATER SUPPLY

1.15.1 Refer condition 31 of General Conditions Of Contracts (IAFW-2249) and clause 1.13 of MES Schedule.

1.15.2 **Water will NOT be supplied by MES** & contractor shall make his own arrangements for water for theentire work. However, the contractor if he so desires, will be permitted to drill bore well(s) in the area at his own cost. The well(s) dug/drilled by the contractor shall become the property of the Govt. without any extra cost. The contractor shall at his own cost, get the water tested from recognised Govt. Laboratory about the portability of water and produce the certificate to the GE.

1.15.3 Water used for mixing and curing shall be generally potable water, clean and free from impurities viz. oils, acids, alkaline salts, sugar, organic materials or other substance that may be deleterious to concrete or steel and also conform to IS-456.

1.16 ELECTRIC SUPPLY

Electricity will not be supplied by MES and contractor shall make his own arrangement for electric supply for the entire work."

1.17 RELEASE OF ADDITIONAL SECURITY DEPOSIT

Additional security deposit when deposited by the contractor as per clause 22 of IAFW-2249 shall be released in two stages as under :-

(a) 50% additional security deposit shall be released on payment of final bill provided there are no claims outstanding against the contractor in respect of the contract in which the additional security is lodged and the final bill is not minus. In the event of Department's claims against the contractor and/or the final bill being minus, the amount of the security deposit shall be adjusted against the claims due to Government and the balance, if any, will be released to the contractor.

(b) Balance 50% of the additional security deposit will be released to the contractor after the expiry of defect liability period as per condition 68 of IAFW-2249.

(c) In order to implement the above procedure the contractor is advised to deposit the additional security in two equal parts so as to facilitate its release.

(d) The above clause is not applicable for release of Earnest Money/Security Deposit deposited by a contractor who has not executed the Standing Security Bond with the department.

SPECIAL CONDITIONS (CONTD/-)

1.18 MINOR CONSTRUCTIONAL DETAILS

Lump sum quoted by the contractor shall be deemed to allow for all minor constructional details which are not specifically shown on drawings or given in the Particular Specifications but are essential for the execution of work and services in workman like manner and sound construction. In case of difference of opinion between the contractor and Garrison Engineer as to whether or not certain item of work constitutes `Minor Constructional Details' which is deemed to have been included in the contractor's quoted lump sum, the decision of the Accepting Officer shall be final, conclusive and binding.

1.19 STACK MEASUREMENTS

1.19.1 Refer Special Conditions 20A.1.2 of MES Schedule Part II.

1.19.2 Soling, Stone chipping for premixed carpet, etc. shall be stacked at suitable level places and their measurements recorded in measurement book and signed and dated by the MES representative and the contractor as a check to ensure that the required quantities have been brought at site for incorporation in the work. No deductions shall be made in the stack measurement for unevenness of ground.

1.19.2 This provision, however, shall not absolve the contractor from providing more materials required to complete the work to the required specification and to repair potholes, cracks, etc. that may occur during rolling.

1.20 BLANK

1.21 SALES TAX CONSEQUENT UPON THE CONSTITUTION (FORTYSIXTH AMENDMENT ACT 82).

(a) Tendered rates shall be inclusive of all taxes and levies payable under the respective statute including Sales Tax/Labour Cess/ Education Cess/ VAT/Service Tax on Works Contract imposed on transfer of the right to use any goods for any purpose, Act of Goa State Government promulgated consequent to the 46th amendment to the constitution.

(b) Tenderer shall note that no separate amount is to be indicated for the above mentioned Sales Tax/Labour Cess/ Education Cess/ VAT/Service Tax on Works Contract payable to Goa Government, in his tender. The element of this Sales Tax shall be included by the tenderer in his lump sum/unit price quoted.

(d) Any tender which proposes any alteration to the above condition and/or which proposes the element of Sales Tax/Labour Cess/ Education Cess/ VAT/Service Tax on Works Contract separately over and above the quoted lump sum/unit price will be treated as conditional tender and is liable for rejection.

1.22 RE-IMBURSEMENT/REFUND ON VARIATION IN "TAXES DIRECTLY RELATED TO CONTRACT VALUE".

(a) The rates quoted by the Contractor shall be deemed to be inclusive of all taxes (including Sales Tax/VAT on materials, Sales Tax/VAT on Works Contracts, Turnover Tax, Service Tax, Labour Welfare Cess/tax etc.), duties, Royalties, Octroi & other levies payable under the respective statutes. No reimbursement/refund for variation in rates of taxes, duties, Royalties, Octroi & other levies, and/or imposition/abolition of any new/existing taxes, duties, Royalties, Octroi & other levies shall be made except as provided in sub para (b) here-in-below.

(b) (i) The taxes which are levied by Govt at certain percentage rates of Contract Sum/Amount shall be termed as "taxes directly related to Contract value" such as Sales Tax/VAT on Works Contracts, Turnover Tax, Labour Welfare Cess/tax /Service Tax on Works Contract and like but excluding Income Tax. The tendered rates shall be deemed to be inclusive of all "taxes directly related to Contract value" with existing percentage rates as prevailing on last due date for receipt of tenders. Any increase in percentage rates of "taxes directly related to Contract value" with reference to prevailing rates on last due date for receipt of tenders shall be reimbursed to the Contractor and any decrease in percentage rates of "taxes directly related to Contract value" with reference to prevailing rates on last due date for receipt of tenders shall be refunded by the Contractor to the Govt/deducted by the Govt from any payments due to the Contractor. Similarly imposition of any new "taxes directly related to Contract value" after the last due date for receipt of tenders shall be reimbursed to the Contractor and abolition of any "taxes directly related to Contract value" prevailing on last due date for receipt of tenders shall be refunded by the Contractor to the Govt/deducted by the Govt from the payments due to the Contractor.

SPECIAL CONDITIONS (CONTD/-)

(ii) The contractor shall, within a reasonable time of his becoming aware of variation in percentage rates and/or imposition of any further "taxes directly related to Contract value", give written notice thereof to the GE stating that the same is given pursuant to this Special Condition, together with all information relating thereto which he may be in a position to supply. The Contractors shall submit the other documentary proof/information's as the GE may require.

(iii) The Contractor shall, for the purpose of this condition keep such books of account and other documents as are necessary and shall allow inspection of the same by a duly authorized representative of Govt, and shall further, at the request of the GE furnish, verified in such a manner as the GE may require, any documents so kept and such other information as the GE may require.

(iv) Reimbursement for increase in percentage rates/imposition of "taxes directly related to Contract value" shall be made only if the Contractor necessarily & properly pays additional "taxes directly related to Contract value" to the Govt, without getting the same adjusted against any other tax liability or without getting the same refunded from the concerned Govt Authority and submits documentary proof for the same as the GE may require".

1.23 ADVANCES ON ACCOUNT OF NON-PERISHABLE MATERIALS

The contractor may be paid advance on account to the full value of the under mentioned materials only, brought on the site, on his furnishing guarantee bond(s) from a scheduled bank for the amount of the retention money, should otherwise be recoverable from him under the contract :-

(i) Factory made panelled shutters.
(ii) Factory made Aluminium windows/ ventilators.
(iii) Sanitary fittings.
(iv) Builders hardware fittings (iron mongery).
(v) Electrical cables/ wires/ fittings/ fixtures.
(vi) Water supply pipes, fittings/ fixtures.
(vii) All other non-perishable materials as decided by the GE.

The Bank Guarantee Bonds shall be executed for a period and on a form as directed by the Accepting Officer. The contractor shall further arrange to extend the period of Guarantee Bond if and when necessary, as directed by the Accepting Officer or shall furnish fresh guarantee bond of similar value. It will be noted that advance on account to the full value to materials brought on the site is permissible only in respect of fittings and fixtures and other manufactured items which do not lose their identity. Materials like bricks, aggregate, precast concrete and similar items shall not be taken in the list.

1.24 CLEANING DOWN (Refer Condition 49 of IAFW-2249)

The contractor shall clean all floors, walls, remove cement, lime, paint marks/drops etc clean the joinery glass panes etc, touch up all painters work and carry out all other necessary items of work in connection therewith and leave the whole premises clean and tidy before handing over the building. No extra payment shall be claimed by the contractor for this operation.

1.25 LABEL OF ARTICLES

Contractor shall provide aluminium LABEL of not less than 75mmx25mm and of adequate gauge with brass screws on articles like transformer, panel board, generating set etc indicating there on the names of the firm, the contract No. and year as directed by GE. The cost of such aluminium labels shall be deemed to be included in the quoted rates against respective item of Schedule `A'.

1.26 DAMAGE TO STRUCTURE

Any damage done to the structure built or being built by other agency during execution of work shall be made good by the contractor at his own cost and the site of work left clean and tidy on completion. Rectification, reinstatement, making good etc shall conform to the standard of materials originally used in the work and finished work shall match with existing work in all respect to the entire satisfaction of the GE. In case of any dispute on this account the matter shall be referred to the CWE whose decision in writing shall be final, conclusive and binding.

SPECIAL CONDITIONS (CONTD/-)

1.27 CONDITIONS OF WORKING :-

1.27.1 CONDITIONS OF WORKING IN UN-RESTRICTED AREA :-

The entire work under this contract lies in "**UNRESTRICTED AREA**". The conditions of working in "**UNRESTRICTED AREA**" are stipulated as under:-

(a) The contractor/ his agent(s)/ representative(s)/ workmen etc., and his materials carts, trucks or other means of transport, etc., may pass through the unit lines, in which case GE or Engineer-in–charge at his discretion, has the right to issue the passes, control their admission to the site of work or part thereof. The contractor shall on demand by the Engineer-in –charge shall submit a list of personnel etc. concerned and any other information called for by the Engineer-in–charge and shall satisfy the Engineer-in –charge as the bonafide of such a people. Passes shall be returned at any time on demand by the Engineer-in –charge and in any case on completion of work.

(b) The contractor shall be responsible for conduct of his workmen, agents or representatives. The contractor his workmen, agents or representatives shall observe all the rules and regulations promulgated from time to time by the authority controlling the area/ unit where the work is to be carried out e.g. prohibition of smoking etc. Any person found violating the rules laid down by the authority shall be immediately expelled from the area without assigning any reasons whatsoever and the contractor shall have no claim on this account. Nothing extra will be admissible for any man hours lost on this account.

(c) If the contractor desires to employ female labour on works to be carried-out inside the area of factory, depot, park, unit, etc and a female searcher is not borne on the authorised strength of the factory, depot, park, unit, etc, at the time of submission of tender, he shall be deemed to have allowed in his tender for pay and allowances etc. for a Female Searcher (Class IV servant/ GP`D' servant) calculated for the period, female labours are employed by him inside the area. If more than one contractor employs female labour during any month and female searcher(s) has/have to be employed in addition to the authorised strength of the factory, depot, park, unit, etc, the salary and allowances paid to the additional female searcher(s) shall be distributed on equitable basis between the contractors employing female labour taking into consideration the values and periods of completion of their contracts. The GE's decision in regard to the amount recoverable on this account from any contractor shall be final and binding.

(d) The contractor shall not carry out any work on gazetted holidays, weekly holidays and other non-working days except when he is expressly authorised in writing to do so by the Garrison Engineer. The GE may at his sole discretion declare any day as holiday or non-working day without assigning any reason for such declaration

1.28 BLANK

1.29 METHOD STATEMENT

1.29.1 The contractor shall plan for execution and completion of work with foresight to ensure timely execution with the quality of work desired.

1.29.2 Period of completion shall be divided into months/ fortnights/ weeks and plan for each months/fortnights/weeks by preparing schedule for every months/ fortnights/weeks with following details ,even before commencement of work.

(a) Items of work to be executed with quantity.
(b) Labour to be deployed trade wise,
(c) T & P to be deployed.
(d) Material to be brought to site for works to be executed next week.
(e) Type and number of engineers to be employed.

1.29.3 Any special item of work to be executed alongwith description of method as to how contractor intends to execute. It must be submitted in advance.

1.29.4 Contractor shall also plan in advance and make available all the requisite safety equipment for the labour. A list of the same shall be given.

1.29.5 Contractor shall produce test certificate of T & P being deployed at site. The test certificates shall indicate the present capacity of the T&P and shall not be more than 6 months old.

1.29.6 The above details shall be furnished by contractor within 10 days of commencement of work. Work will be not allowed to be executed without these details. However, date of commencement of work will be within one month of acceptance as per contract.

1.29.7 Delay on account of non-submission of these details /test certificate will be attributable to contractor and no extension of time will be granted on this account.

SPECIAL CONDITIONS (CONTD/-)

**MONTH/FORTNIGHT/WEEK NO_____
From _____ To _____
EXECUTION

Sl No	Item of work	Quantity
1		
2		

Sl No	No of Engineers to be employed	
		Nos
1	Civil (a) Graduates (b) Diploma Holders	
2	Electrical (a) (b)	
3	Mechanical (a) (b)	

Sl No	Labour required to be employed	
	Trade	Nos
1	Mazdoor	
2	Manson	
3	Electrician	
4		
5		
6		

Sl No	T&P to be deployed	
	Type	Nos
1		
2		
3		
4		

MATERIALS TO BE BROUGHT AT SITE FOR EXECUTION MONTH/ FORT NIGHT/ WEEK WISE DETAILS

Sl No	Description of material	Quantity	Source

1.30 OFFICIAL SECRET ACT

The contractor shall be bound by the Official Secrets Act, 1923.

1.31 CONCILIATION

1.31.1 **Scope of conciliation**

The scope of conciliation shall be restricted to the following types of disputes with financial limits as indicated therein:-

- **(a)** Disputes relating to levy of compensation for delay in completion-actual amount of Compensation.
- **(b)** Disputes relating to technical examination of works.
- **(c)** Disputes relating to interpretation of the provisions of the contract with reference to their application to parties.
- **(d)** Disputes relating to non return of Schedule` stores over issued to contractor.
- **(e)** Any other dispute having fair chances of being resolved by conciliation and considered fit to be referred to conciliation by the parties.

1.31.2 For items (b), (c), (d) and (e) each as stated above the financial limit shall be Rupees two Lakhs or one percent of the contract amount whichever is less.

1.31.3 Commencement of Conciliation Proceedings

(a) The party initiating conciliation shall send to the other party a written invitation to conciliate, briefly identifying the subject of the dispute.

(b) Conciliation proceedings shall commence when the other party accepts in writing the invitation to conciliate.

SPECIAL CONDITIONS (CONTD/-)

(c) If the other party rejects the invitation, there will be no conciliation proceedings. If the party initiating conciliation does not receive a reply within 30 days from the date on which he sends or within such other periods of time as specified in the invitation, he may elect to treat this as a rejection of the invitation to conciliate and if he so elects, he shall inform in writing the other party accordingly.

1.31.4 Number of Conciliators

There shall be a sole Conciliator

1.31.5 Appointment of Conciliator

All disputes brought out in para 1.34.1.1 (a) to (e) above shall be referred to the Sole Conciliator viz Serving Officer not below the rank of Superintending Engineer / Superintending Engineer (QS & C) having degree in Engineering or equivalent or having passed final / direct final examination of Sub Division II of Institution of Surveyors (India) to be appointed by the Engineer-in-Chief, Army Headquarters, New Delhi or in his absence the Officer officiating as Engineer-in-Chief or Director General of works specifically delegated by the Engineer-in-Chief in writing.

1.31.6 Status of Effect of Settlement Agreement

The settlement agreement signed by the parties as a result of conciliation proceedings shall have the same status and effect, as it is an arbitral award on agreed terms.

1.32 QUALIFIED TRADESMEN : (APPLICABLE FOR WORKS COSTING RUPEES ONE CRORE OR MORE)

In compliance with the Condition 26 of IAFW-2249 (General Conditions of Contracts), the contractor shallemploy skilled/semi skilled tradesmen who are qualified and possessing certificate in particular trade from Industrial Training Institute (ITI)/ National Institute of Construction management and Research (NICMAR)/Construction Industry Development Council (CIDC) / Similar reputed and recognised Institutes by State/Central Government, to execute the works of their respective trade. The number of such qualified tradesmen shall not be less than 25% of total skilled/semi skilled tradesmen required in each trade. The contractor shall submit the list of such tradesmen alongwith requisite certificates to garrison Engineer for verification and approval. Notwithstanding the approval of such tradesmen by GE, if the tradesmen are found to have inadequate skill to execute the work of their trades, leading to un-satisfactory workmanship, the contractor shall remove such tradesmen within a week after written notice to this effect by the GE and shall engage other qualified tradesmen after prior approval of GE. GE`s decision whether a particular tradesmen possesses requisite qualification, skill and expertise commensurate with nature of work, shall be final and binding. No compensation whatsoever on this account shall be admissible.

1.33 PLANT SITE:

1.33.1 Batching plants and site office shall be erected in un-restricted area at the location shown on the site plan attached. No crushing plant will be permitted to be installed inside the MOD land. The contractor shall take necessary precaution to reduce the noise level, vibration, dust and emissions from the plants as directed by the GE. The access to the plant site shall be from restricted area only. To make access, the contractor will have to provide temporary gate of required width in the existing security wall. Security personnel deployed by the authorities at the entrance/gate shall be at the contractor's own cost. On completion of work the temporary gate will have to be removed and broken wall is to be made good. No extra amount shall be payable for provision of temporary gate and making good the wall.

1.33.2 All existing roads to be used by the vehicle of the contractor or any of his sub contractors or suppliers of materials or plant shall be kept clean and clear of all dust and other extraneous materials dropped by the said vehicles or their tyres every day.

1.33.3 Any structural damage caused to the existing roads by the contractor's construction equipment shall be made good without any extra cost within seven days, failing which, **Rs. 10000/- damages per week** shall be charged till the road is repaired by the contractor.

1.34 EMPLOYEES PROVIDENT FUNDS AND MISCELLANEOUS PROVISIONS (EPF & MP) ACT

1.34.1 All contractors shall get themselves registered with Employees Provident Fund Organization and deposit the necessary contributions with the EPFO. All the workers deployed by contractors shall be enrolled as numbers of Provident Fund and Should be given the Universal Account Number (UAN) While submitting the Running Account Receipt and Final Bill, the contractor shall submit a certificate to the effect that all the workers employed directly or indirectly by him are registered for EPF and due contributions have been credited into their account. Failure to provide social security benefits to the workers employed by the contractor is an offence under EPF & MP Act and appropriate penal can be taken in case of failure to ensure compliance of the Act.

PARTICULAR SPECIFICATIONS

1.0 GENERAL

1.1 Works under this contract shall be carried out as detailed in different parts of Schedule `A' and in accordance with Particular Specifications, Drawings including notes thereon, Special Conditions, provisions given in General Summary and General rules and Specifications/ Provisions given in MES SSR Part I- 2009 as well as General rules, Special conditions and preambles to various rates given in MES SSR Part II- 2010 (MES SSR Part I and II hereinafter called as MES Schedule).

1.2 The term `General Specifications' referred to in these documents as well as referred to in IAFW - 2249(General Conditions of Contracts) shall mean the specifications contained in the MES Schedule Part I.

1.3 General Rules, Specifications, Special conditions, method of measurements and all preambles in the MES Schedule shall be deemed to be applicable to the work under this contract, unless specifically stated otherwise in these documents. In case of variance between provisions in these documents and those given in MES Schedule, the provisions in these documents shall take precedence over the aforesaid provisions in the MES Schedule.

1.4 The term “as specified” wherever appears in tender documents and drawings, relates to relevant particular specifications and in its absence General specifications.

1.5 Particular specifications in this section given hereinafter shall be generally applicable to all works covered under all parts of Schedule ‘A’s. The particular specifications are in brief and are only to particularize, amend and emphasize the specifications given in MES Schedule, which are not repeated.

1.6 Where specifications for any item of work are not given in these particular specifications or in MES Schedule, specifications as given in relevant Indian Standard or Code of Practice shall be followed.

1.7 Reference to any drawings which is mentioned on the drawings forming part of the tender or mentioned in these particular specifications but not specifically mentioned in the list of drawings shall be deemed to be forming part of the tender. The tenderer shall refer such drawings/ details in the office of Accepting Officer / GE before quoting his tender.

2.0 SCOPE OF WORK

2.1 The scope of work consist of “**ADDN / ALTN AND SPECIAL REPAIRS TO HANGAR DOOR WITH AUTOMATION AT ICGAE PORBANDAR”** including all connecting items as given in Schedule `A' Part I all as described & specified in drawings and these particular specifications.

2.2 The tenderer shall Design and submit General Arrangement drawings after acceptance of tender. These design and drawings shall be vetted from any of IIT’s / Govt Engg College/NIT’s and submitted to the Accepting Officer for approval and execution of work.

3. DOOR DIMENSIONS

Maximum Windload	Maximum Clear Width	Clear Height	No of Leaves	No of Tracks	Minimum Leaf Width	Leaf Height
A	B	C	D	E	F	G
1.5 kN/m2	40M	10M	06 Six	03 Three	7M	10.25 M

PARTICULAR SPECIFICATIONS (CONTD…..)

4. **Door Configuration**.

4.01 Six door leaves moving on three tracks, travelling within the sturdy out riggers on both sides. Only 02 leaves are to be placed on a single axis.

5. **Manual Operations**.

5.01 Each leaf must be operable manually by an two able bodied person.
All the door leaves shall be independent of each other.

6. **Operating Speed**.

6.01 The sliding door shall be operated at a constant speed of 0.35m/sec corresponding to average comfortable walking speed of an average healthy male/female adult.

6.02 The door shall not accelerate above this speed at any point of time during electrical operation, however, in the areas of its normal parking, the door will automatically operate at a slower speed of 0.25m/sec with the parking bays.

6.03 The door shall be operated with a deadman's control at all times and will operate only in forward direction with the operator needing to keep the button pushed at all times for safety reasons.

7. **General Design Criteria & Accuracy Parameters**.

7.01 The function of the sliding door system is to close the building most efficiently and to protect it against wind, weather, noise and unauthorized access. The door system should be capable of being operated safely and economically without any risk of injuring persons and without excessive demand on human efforts and materials.

7.02 The entire door system must be designed to be supported only the lower wheel and shall be installed in an independent door frame structure that is self-supportive and does not transfer any hung loads or forces to the existing Hangar building structure. The door system must not transfer any hung loads on the top tracks, which must act only as guide channels and direct the lateral forces to the door frame structure.

7.03 The entire door systems shall be designed in the way that length variations, resulting from different temperatures and thermal expansion coefficients, as well as from vertical door girder deflections and deformations of the door leaves due to wind energy, will not influence the function of the door system.

7.04 For ecological reasons, the door system must be light-weighted, relatively maintenance-free and corrosion resistant. Each door panel must not exceed 3.5 MT in weight.

7.05 The door frame elements are to be fabricated with great accuracy and care. The overall frame shall be fabricated to meet very sharp tolerances in order to provide perfect fit and alignment. The diagonal length, horizontal and vertical measurements shall be within ± mm tolerance. The door frame, Top and Bottom tracks and the wheel carriages shall need to be aligned with laser measuring devices to achieve accurate and uniform distances between the door leaves to fall within ± mm tolerance limit for each axis.

PARTICULAR SPECIFICATIONS (CONTD…..)

8. **Door Pocket Frame**.

8.01 The Door Manufacturer or the authorised installer shall provide a suitable Goal Post Structure made out of Structural steel members specially designed for the purpose along with foundation inserts. This pocket frame will be connected to the gable end of the main hangar building and installed inside the building.

8.02 The excavation of the channel to remove the existing tracks & to install the new tracks as well as the steel frame foundations shall be done by the contractor. The steel sub construction below the door tracks and the concrete filling in the track areas shall also be arranged by the contractor.

8.03 The door manufacturer shall install a suitably designed cover panel to effectively hide the top tracks from all the sides. These cover panel shall be neatly installed with help of self tapping screws on the subconstruction.

9. **Top Tracks**.

9.01 The Top Tracks shall be installed within the Door Pocket Frame to be designed and installed independent of the Hangar building.

9.02 The Top tracks will be suitably integrated with the main building structure to safely transfer the lateral windload through the existing cantilever frame work.

9.03 Suitable arrangements will be made by the door manufacturer, to attach the Top Tracks and sealings with the top girder in order to hold the door in place.

10. **Top Guide Wheel**.

10.01 The upper frame section of each leaf shall be equipped with a minimum of 4 horizontally arranged guide wheels. The wheels shall be fitted with low maintenance ball-bearing made of steel which are mounted on a galvanized steel axis. This steel axis shall be fixed in the frame in a suitable manner that the door frame is held firmly and safely in event of Thermal Expansion and wind situations to the extent stipulated in the design criteria.

11. **Construction of the Door Leaves**.

11.01 The purpose of the door frame is to take the loads arising from wind energy, its own weight and the energy of kinematics.

11.02 Each door leaf frame shall consist of 2 self-supporting elements made of Suitable steel profiles (approx. 250-400 mm width). Furthermore, the vertical frame profiles shall be connected by means of 5 horizontal additional transoms made of steel or Aluminium hollow sections. All joints must be suitably bolted for easy exchange. The manufacturer shall provide some or all of the stress bearing sections with special steel profiles of suitable shape and size to counter the windload requirements as per their design requirements.

11.03 The corner connections of the frame sections shall be bolted together and they are reinforced at the bottom via the galvanized wheel enclosure and at the top via the telescopic guides. Therefore, the corresponding horizontal frame profiles and provided with two threaded steel bolts. The vertical frame profiles are connected closely by means of four screws- DIN 912 and a special connection plate. A solid unit consisting of sturdy and maintenance-free guide rollers as well as a storm protection devices are mounted in the bottom support frame sections.

PARTICULAR SPECIFICATIONS (CONTD…..)

11.04 The wheels shall be internally covered through simply detachable multiple flanged 2mm aluminium covering sheets, which are equipped with pivot levers.

11.05 A very resistant stainless steel handle for manual opening and closing of the door leaves shall be mounted inside the vertical closing frame of each door leaf at a convenient height.

11.06 The leaves shall be locked by means of covered steel locking bars which can be operated with handles form inside.

12. **Dust ingress/ Air Leakage Control**.

12.1 **Top sealing**. The top sealing of the door leaves to the frontage or the outside shall be affected via multiple-flanged cover sheets with a special profile made of wool felt.

12.2 **Vertical Sealing**. The sealing between the two middle door leafs is affected via special two-piece EPDM-profiles running along the entire length of the door panels. The vertical sealing between the adjacent door leaves as well as in between the building and the door leaves consist of a two-piece EPDM rubber gasket with an efficient joint transmission coefficient value. This special sealing is mounted to the vertical frame sections as well as to the frontage elements of the hangar building, by means of alloy profiles.

12.3 **Bottom Sealing**. The bottom sealing shall be affected via brush sealing profiles/ rubber flap seals which flush well below the floor level, right into the bottom track system in a manner that in case of an excessive wind pressure, the sealing profiles should be automatically pressed against the internal bar of the guide track profile and thereby prevent undesirable drafts. The seals must be installed in a manner that the complete opening between the door and the floor is effectively sealed to ensure that the air leakage rate does not exceed 50m3/m2/hour.

13. **Cladding.** Based on the static and technical calculations, design, distances of the frame members of the door leafs, the physical and technical data the steel cladding shall made of permanently finished Galvalume sheets of thickness not less than 1 mm.

14. Translucent Panels

14.1 Each of the door leaves will enclose within each of the Frame panels, a break resistant, toughened glazing solution spanning the entire width of the door from 700mm to 3000 mm height.

14.2 The translucent panels shall be made with multiwall, abrasion resistant, UV barrier, PVC or Polycarbonate panels, suitable to withstand the applicable windload conditions and the ambient temperature at the site.

15. Bottom Tracks

15.1 The Bottom tracks shall be made of suitably designed profiles that shall prevent excessive deflection against the vertical loads of the door leaf panels and prevent the ingress of the adjoining concrete. The bottom tracks shall have inbuilt egress for storm water collections in the tracks.

15.2 The installation of the bottom tracks including suitable steel sub construction including concrete base shall be included in the scope of the door manufacturer.

PARTICULAR SPECIFICATIONS (CONTD…..)

15.3 The door contractor shall have to excavate the existing bottom tracks, safety cut the apron in the door pocket area and reinstall the new tracks with concrete having compression strength as specified by the Engineer in Charge.

16. **Bottom Running Wheel**

16.1 The lower carrying guide rollers, 2 or 3 rollers per leaf, shall be made of high-quality steel-ST 52-3, including two flanges.

16.2 These running wheels shall be mounted in a solid, galvanized wheel housing, made of ST 52-3 steel sections. This wheel housing shall be bolted in the corner area of the door leaf at the vertical and horizontal frame section, by means of sturdy screws and a galvanized counter plate.

16.3 Furthermore, this wheel housing shall be equipped with a storm protection device made of a flat, galvanized steel bracket, preventing the door leaf from taking off the tracks. The bearing of the carrying guide rollers shall be affected via a welded bolt, equipped with two maintenance free, easily running grooved ball bearings. The occurring forces are transferred safely into the guide rail. The running wheels can be exchanged very easily and economically.

17. Inbuilt Drainage System

17.01 The water in the grooves is drained through the galvanized drainage ducts mounted under the bottom guide rails in regular intervals (approx. 05 m) via a collecting pipe (connection cross section : DN 200). Each collecting pipe is equipped with one cleaning opening. These pipes are to be connected to the main drain running parallel to the building, inside or outside, to be designed and provided by the door installer.

18. Collision Buffer

18.1 In order to limit the driving area of the door leaf in the door- open-position and to prevent a possible over driving of the guide rail ends, a collision buffer (shock absorber) is mounted in the area of each top track.

18.2 Each shock absorber unit to consist of a solid accommodation console of galvanized steel, as well as a buffer of Autan (type ACLA). The top shock absorber is attached directly to the top guide track so that the charge transmission is led to the corresponding top horizontal frame section.

19. Tow Eye Hooks

19.01 Each door leaf shall be provided with sturdy tow eye hooks, suitably mounted at a convenient location. The door leaf can be safely parked into position by mechanical pull devices or a small vehicle in case of a rare occasion when the electrical controls have failed.

20. Door Bolts

20.01 The doors can be easily locked into position via electric control panel and unauthorized access can be controlled by electric switch provided with lock and key. Additional security is provided via tower bolts Provided in the each telescopic door leaf. This locking device shall also provide additional security to the door in very high wind conditions. The doors will be equipped with an intelligent sensor which shall prevent operations of the door in case the tower bolts have been engaged.

PARTICULAR SPECIFICATIONS (CONTD…..)

21. Surface Finishes

Component	Finish
Top sealing plates (vertical):	Naturally anodized (E6/EV1)
Frame profiles (aluminium):	Naturally anodized (E6/EV1)
Frame Structural Members (Steel):	Shot Blasted SA2.0 and coated with Zinc Rich Primer and EPU based top coat system. Minimum DFT- 220 microns in three coats in any RAL colour.
Internal covering sheets (base):	Naturally anodized (E6/EV1)
External covering sheets (base):	Naturally anodized (E6/EV1)
Aluminium profiles:	Naturally anodized (E6/EV1)
(clamping, glazing, support profiles, etc.)	
Other steel components:	Galvanized or made of stainless steel
Bolts (quality 8.8)	Galvanized
Outside visible bolts	stainless steel
Rivets	stainless steel or aluminium

22. Design and Drawings

22.1 The tenderer shall Design and submit General Arrangement drawings after acceptance of tender. These design and drawings shall be vetted from any of IIT's / Govt Engg College/NIT's and submitted to the Accepting Officer for approval and execution of work.

23. Applied Standards

23.01 The hangar doors shall be primarily designed on the basis of the following directives :-

Standard Reference	Explanation
EN 13241-1:2004-	Industrial doors-Product Standards.
IS 875 Part 3	Resistance to Wind Load- Classification, testing and calculation.
EN 12944:1998-	Corrosion Protection.
ISO 9001-2015	Quality Management System for Manufacturing

24. Electrical Control System

24.01 **GENERAL**. The electrical control system shall be able to control all aspects of the door movements. The control system for each door section shall consist of a control panel, Limit switches, trailing / bunching cables etc.

25. ELECTRICAL POWER SUPPLY

25.01 The incoming power supply to the door control panel shall be 415V, 3-phase, 50 Hz, 4 – wire & earth. Power supply to each master leaf shall be by means of a looped trailing/ bunching cable system, mounted in the top guide track area from a junction box placed at the top extremities inside the hangar.

PARTICULAR SPECIFICATIONS (CONTD…..)

26. **ELECTRICAL OPERATION**

26.01 The electrical operation of each door section shall be carried out from a control panel mounted inside each master leaf. The operator shall have to keep the OPEN/ CLOSE joy- stick pressed to enable the door to operate. At each extremity the door shall automatically STOP, as the control power shall be cut-off through proximity switches. An EMERGENCY STOP BUTTON (STAY-PUT TYPE) shall also be provided on the control panel. The variable speed drive control panel shall enable the doors to be started and accelerated to their running speed by a smooth & gradual increase of the speed over an interval of time. Similarly, on receiving a confirmation from the "Pre-final" proximity switch the panel shall automatically decrease the speed of the door smoothly & gradually from running speed to full east.

27. Control Panel & System

27.01 Each door control panel shall consist of a variable speed drive controller, MCCB, contactors, motor protection, control fuse holders and fuses, indication lamps, interlock contactors, Limit switches, warning lights/ hooters, trailing / bunching cable / wiring on the door after the main in-coming power junction box etc.

28. **Door Operation Safety**. The following features shall be incorporated in the control system of the doors : -

28.01. The control panel shall be located for easy operation and enable the operator to have a full view of the area during operation of the door.

28.02. The OPEN & CLOSE joy-sticks are constant pressure (HOLD to RUN) and the EMERGENCY STOP push button is STAY PUT type and has to be twisted to release.

28.03. Emergency proximity switch shall be provided at the extreme limits of travel just before the mechanical buffers. These emergency switches shall totally cut-off the control/ power supply to the system in case the doors over shoot their normal limits.

28.04. Audio / Visual Alarm- Each door control panel shall be provided with a Flashing Light cum Sounder that start & continue to operate during the time the door is in operation.

28.05. Key Operation- An operating key switch shall be provided on each control panel to prevent un-authorised operation of the doors.

29. **WARRANTY**. Extended warranty should be two years from date of installation and annual maintenance contract should be five years after the warranty. Freight from factory to site and customs duty on imported components and incl all taxes are deemed to be included in the unit rate quoted. The unit rates quoted shall also includes for 05 years annual comprehensive maintenance after warranty period for smooth functioning of hanger gates.

30. Requirement of ladders, Crane, Fork lift, any lifting equipment and any handling equipment shall be provided by the contractor.

31. Requirement of electric supply for the entire work shall be provided by the contractor (such as diesel generator etc).

32. Certificate for hangar door windload withstanding capacity through OEM/certified authorised agency shall be submitted by the contractor.

PARTICULAR SPECIFICATIONS (CONTD…..)

33. Provision of minimum 02 doors with low thershold for personnel access to be provided in each Hangar (Total minimum of 04 PA doors in both hangars). These PA doors must be interlocked with main doors for safety.

34. Accommodation and transportation of contractor's working party to be provided by the contractor. The same will not be provided by department.

35. The quoted rates shall inclusive of removal of existing doors and all associated fixtures / accessories as directed by Engineer-in-Charge / GE.

Signature of Contractor

AAD (Contracts)
for Accepting officer